

		Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
5	30-2022-01239291 Kirkpatrick vs. A Mission for Michael, Inc.	The tentative ruling is to continue the hearing on Plaintiff Julian Kirkpatrick's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to November 16, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The following issues were identified in the court's previous order but were not adequately addressed by the supplemental papers: The court will not approve the following language, which must be removed from the settlement agreement: "The Aggrieved Employees and Plaintiffs Counsel understand and agree that they shall be responsible for the payment of all taxes and penalties assessed on the payments specified herein, and shall hold the Parties, Plaintiffs Counsel, and Defense Counsel free and harmless from and against any claims resulting from treatment of such payments as non-taxable, including the treatment of such payments as not subject to withholding or deduction for payroll and employment taxes." (Settlement ¶ 35.) This language must be removed via an amendment to the settlement agreement.

		There is an escalator clause in the settlement agreement (Settlement ¶ 42), but this is a motion to have the settlement fully approved, and hence a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Settlement Period the parties are using. The parties must either affirmatively represent that the escalator clause has not been triggered or provide the correct gross settlement amount. The court stated that it needs information regarding the number of years of experience for James R. Harkins and Sean S. Vahdat to evaluate the reasonableness of their hourly rates. Plaintiff's counsel has pointed to their previous declarations which provide lists of cases they have worked on, but that is not the information the court requested. The following changes must be made to the cover letter and an amended cover letter must be provided to the court for the court's approval: 1. The term "Settlement Period" must be defined in the cover letter so that the aggrieved employee may understand whether he or she is part of the group. (Cover Letter at p. 1.) 2. The court will not grant approval of a settlement that releases claims not noticed to the LWDA, as plaintiffs must give the LWDA notice and opportunity to investigate or pursue litigation itself for all claims they seek to include in this action and in the settlement release. (<i>See LaCour vs. Marshalls of California, LLC</i> (2023) 94 Cal. App. 5th 1172, 1192-96.) Thus, the phrase: "By operation of the Settlement's terms, all Aggrieved Employees, including you, will release Defendants from any claims under PAGA alleged or could have been alleged against the Released Parties from February 7, 2020 to November 30, 2024" must be amended to state "By operation of the Settlement's terms, all Aggrieved Employees, including you, will release Defendants from any claims under PAGA alleged or could have been alleged against the Released Parties in Plaintiff's October 6, 2021 notice to the LWDA from February 7, 2020 to November 30, 2024" (Cover Letter at p. 2.) 3. The court will not issue an injunction against aggrieved employees. Thus, the phrase: "The Settlement will bar you and any Aggrieved Employee covered by this Agreement (including you) from proceeding with any
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		claim under the PAGA released by this Settlement.” Must be amended to state: “The Settlement may bar you and any Aggrieved Employee covered by this Agreement (including you) as a matter of law from proceeding with any claim under the PAGA released by this Settlement.” (Cover Letter at p. 2.) Plaintiff is ordered to give notice of the ruling to the LWDA and Defendants.
6	30-2021-01198053 Brown vs. CBD, Inc.	Plaintiff Arik Brown’s (“Plaintiff”) Motion for Terminating and Monetary Sanctions against Defendant CBD, Inc. (“Defendant”) is GRANTED. On August 8, 2025, the court granted Plaintiff’s motion to compel further discovery responses from Defendant, and granted monetary sanctions in the amount of \$10,000.00 in favor of Plaintiff and against Defendant and its counsel. When Defendant failed to comply with the August 8, 2025 Order, the court denied plaintiff’s motion for terminating sanctions and compelled further responses with further monetary sanctions in the amount of \$5,000.00 in favor of Plaintiff and against Defendant and its counsel. Plaintiff now brings this motion for terminating, issue and/or monetary sanctions again because Defendant has still failed to provide further responses, including paystubs and mileage data, despite agreeing to do so at a December 11, 2025 informal discovery conference. “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal. App. 4th 486, 496 [finding terminating sanctions appropriate when conduct “intruded into the area of actual fraud” and the “record demonstrates repeated violations of stipulations and court orders, a forged document offered as true, and deliberate destruction of evidence pertinent to exposing that fact”].) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal. App. 4th 262, 279–80.) “If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that